EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 38025/11
Güven BOĞA
against Turkey

The European Court of Human Rights (Second Section), sitting on 27 June 2017 as a Committee composed of:

Ledi Bianku, *President,*
Valeriu Griţco,
Stéphanie Mourou-Vikström, *judges,*
and Hasan Bakırcı, *Deputy Section Registrar,*

Having regard to the above application lodged on 24 May 2011,

Having regard to the formal declarations accepting a friendly settlement of the case,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. The applicant, Mr Güven Boğa, is a Turkish national, who was born in 1963 and lives in Adana. He was represented before the Court by Ms S. Aracı Bek and Mr T. Bek, lawyers practising in Adana.

2. The Turkish Government ("the Government") were represented by their Agent.

3. The applicant's complaint under Article 11 of the Convention concerning the imposition of an administrative fine on the grounds of attending the reading out of a press statement, which constituted a breach of his right to freedom of assembly, was communicated to the Government.

4. On 30 November 2016 and 31 May 2016 the Court received friendly settlement declarations signed by the parties under which the applicant agreed to waive any further claims against Turkey in respect of the facts giving rise to this application against an undertaking by the Government to pay him 1,560 Euros (EUR) to cover any pecuniary and non-pecuniary

damage as well as EUR 500 to cover any and all costs and expenses, which will be converted into Turkish liras at the rate applicable on the date of payment, and be payable free of any taxes that may be applicable. It will be payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay this sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. The payment will constitute the final resolution of the case.

THE LAW

5. The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and its Protocols and finds no reasons to justify a continued examination of the application. In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 20 July 2017.

Hasan Bakırcı	Ledi Bianku
Deputy Registrar	President